

HOUSE No. 4854

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, December 31, 2025.

The committee on Agriculture and Fisheries, to whom was referred the petition (accompanied by bill, House, No. 112) of Natalie M. Blais and others relative to agricultural resilience; and the petition (accompanied by bill, House, No. 4430) of Kate Hogan relative to agriculture resilience and sustainability, reports recommending that the accompanying bill (House, No. 4854) ought to be pass [Fiscal Note: \$3,000,000.00].

For the committee,

NATALIE M. BLAIS.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act fostering agricultural resilience in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6A of the General Laws is hereby amended by inserting after
2 section 18AA the following section:-

3 Section 18BB. The Massachusetts emergency management agency shall develop and
4 maintain a plan for supporting agricultural, seafood and processed food production in the
5 commonwealth in all emergency preparedness planning efforts in order to mitigate the impacts
6 of food supply chain disruptions. The plan shall be developed in coordination with the
7 department of agricultural resources, the department of public health and the department of
8 transitional assistance, and shall include consideration for food production, transportation,
9 storage and distribution. The plan shall be reviewed and updated every 5 years. The director of
10 the Massachusetts emergency management agency shall submit the plan, and subsequent
11 required plan revisions, to the clerks of the house of representatives and the senate, the joint
12 committee on agriculture and fisheries and the joint committee on emergency preparedness and
13 management.

SECTION 2. Section 23B of chapter 7 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 25, the figure “10” and inserting in place thereof the following figure:- 20.

SECTION 3. Said section 23B of said chapter 7, as so appearing, is hereby further amended by adding the following subsection:-

(d) (1) Notwithstanding any general or special law to the contrary, the state purchasing agent, in collaboration with the commonwealth’s 4 regional food banks, the executive office of elder affairs, the department of agricultural resources, the department of transitional assistance, the department of higher education and the department of elementary and secondary education, shall, annually on or before October 31, report on the distribution of products grown in the commonwealth or products produced in the commonwealth using products grown in the commonwealth, hereafter referred to as local food, through food assistance programs that receive state funding. The report shall include, but not be limited to, the following:

(i) the quantity of local food distributed, by dollar value and as a percentage of total food distributed and, where possible, by weight;

(ii) a breakdown of the types of local food distributed, including, but not limited to, produce, meat, dairy, seafood and processed food, including whether or not the processed food includes ingredients grown, raised or caught in the commonwealth, by dollar amounts and as a percentage of total food distributed and, where possible, by weight;

(iii) the number and names of farms from which local food is sourced for food assistance programs that receive state funding;

(iv) the quantity of local food distributed by food assistance programs that receive state funding including, but not limited to, the Massachusetts emergency food assistance program, the Massachusetts healthy incentives program, universal free school meals, the hunger-free campus initiative, the farm to school FRESH grant program, the senior nutrition program, the Meals on Wheels Program and the senior farm share program, by dollar amounts and as a percentage of total food distributed and, where possible, by weight; and

(v) recommendations on how the commonwealth can increase the amount of local food distributed through food assistance programs that receive state funding in future fiscal years while maintaining affordability and fairly valuing local food, as well as budgetary or policy recommendations for implementing those recommendations.

(2) The report shall be made available on the operational service division's website and a copy shall be filed with the clerks of the house of representatives and the senate, the joint committee on agriculture and fisheries and the joint committee on children, families and persons with disabilities.

SECTION 4. Section 6C of chapter 20 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 3, the figure "18" and inserting in place thereof the following figure:- 20.

SECTION 5. Said section 6C of said chapter 20, as so appearing, is hereby further amended by inserting, after the word "affairs", in line 19, the following words:- ; 1 of whom shall be the director of the division of marine fisheries of the department of fish and game, or a designee; 1 of whom shall be the director of the University of Massachusetts Center for Agriculture, Food, and the Environment, or a designee.

SECTION 6. Subsection (c) of said section 6C of said chapter 20, as so appearing, is hereby amended by adding the following 4 sentences:- Subject to appropriation, advisory committee members may be eligible for compensation at a rate fixed by the council, as approved by the chief financial officer of the department of agricultural resources to ensure appropriate funds are available to cover the costs. Advisory committee members shall be eligible for compensation only to the extent otherwise permitted by chapter 268A and upon providing the necessary documentation required to process any such payment. Any request for compensation shall be made by the advisory committee member to the department of agricultural resources within 30 days of being incurred. Requests made after this time shall be ineligible for payment.

SECTION 7. Section 23 of said chapter 20, as so appearing, is hereby amended by inserting after the word “section,” in line 14, the following words:- ; provided, that the committee or any independent appraisal to determine the fair market value of the land restricted for agricultural purposes shall include in its valuation the appraised value of any easements and infrastructure, including dwellings, structures, plumbing and irrigation systems, on the entire parcel.

SECTION 8. Section 24 of said chapter 20, as so appearing, is hereby amended by adding the following subsection:-

(e)(1) As used in this subsection, the following word shall, unless the context clearly requires otherwise, have the following meaning:

“Agricultural preservation restriction”, agricultural preservation restriction as defined in section 31 of chapter 184.

(2) The committee, in coordination with the department, shall create annual and long-term goals for enrolling land as an agricultural preservation restriction. Said goals shall consider the value of a parcel to the commonwealth by considering the following factors:

(i) suitability and productivity of land for agricultural use based on soil classification, physical features and location;

(ii) the degree of threat to the continuation of agriculture on the land due to circumstances including, but not limited to, owner's health, retirement, financial positions, development pressure or insecurity due to rental agreements;

(iii) the size or composition of the land that determines if it is economically viable for agricultural purposes, and the likelihood that it will remain in agricultural use in the future;

(iv) estimated amount and type of crop production

(v) soil health, water recharge areas, biodiversity, carbon sequestration and other ecosystem services;

(vi) existing infrastructure;

(vii) access to markets;

(viii) access to land ownership for historically marginalized communities;

(ix) opportunities to meet or further environmental justice principles as defined by section 62 of chapter 30; and

(x) any other factors as determined by the committee.

(3) The committee shall post a public notice of availability of the draft goals in the Environmental Monitor and provide a 60-day public comment period. The committee shall duly consider and respond to comments received and finalize the goals. The goals shall be updated every 3 years, or more frequently, with public review. The committee shall post the final goals, and any subsequent updates to the goals, on the department of agricultural resources' website.

(4) The committee shall publish an annual report evaluating its progress to meet the goals established pursuant to paragraph (2). Said report shall include, but shall not be limited to, the following:

(i) the number of acres newly enrolled in an agricultural preservation restriction during the past year and the total number of acres enrolled in an agricultural preservation restriction in the commonwealth;

(ii) the total number of farms that have acquired a new agricultural preservation restriction during the past year and the total number of farms holding an agricultural preservation restriction in the commonwealth;

(iii) the geographic distribution of farms enrolled in an agricultural preservation restriction;

(iv) challenges to enrolling new land in an agricultural preservation restriction;

(v) plans for the following year to meet the goals established pursuant to paragraph (2);
and

(vi) budgetary requests and statutory changes, if needed, in order to achieve the goals established pursuant to paragraph (2).

(5) Annually, not later than March 1, the committee shall submit a copy of the report to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the joint committee on environment and natural resources. The annual reports shall be posted on the department of agricultural resources' website.

SECTION 9. Said chapter 20 of the General Laws is hereby further amended by adding the following section:-

Section 34. Subject to appropriation, there shall be established a food security infrastructure grant program to support equitable access to healthy, local food and to strengthen food supply and distribution systems in all geographic regions of the commonwealth, which shall be administered by the commissioner. The commissioner may award grants under the program to: (i) food producers, processors and distributors; (ii) emergency food distributors; (iii) community and food organizations; (iv) school meal programs and summer meal sponsors; (v) urban farms and community gardens; and (vi) nonprofit food security organizations. The commissioner shall award grants to fund capital improvements, including: (1) the purchase of new or used equipment; (2) contracted labor costs in order to implement projects; and (3) costs associated with planning and design directly related to capital projects that strengthen and improve the resiliency of the commonwealth's food system while facilitating greater access to fresh, local food and addressing systemic inequities.

SECTION 10. Chapter 21G of the General Laws is hereby amended by adding the following section:-

Section 21. Registration statements and permits for withdrawals for use in a cranberry operation may be transferred to and used for mitigation by other permitted or registered users.

SECTION 11. Section 2WWW of chapter 29 of the General Laws is hereby amended by adding the following sentence:-

Monies in the fund may be transferred to the fund established in section 2MMMMMM.

SECTION 12. Chapter 29 of the General Laws is hereby amended by inserting after section 2LLLLLL the following 2 sections:-

Section 2MMMMMM. (a) There shall be established and set up on the books of the commonwealth a separate fund to be known as the Next Generation Farmers Fund. The fund shall be administered by the secretary of labor and workforce development, in consultation with the secretary of energy and environmental affairs, the secretary of education and the commissioner of agricultural resources.

(b) The fund shall be credited with: (i) \$3,000,000 annually from the Workforce Competitiveness Trust Fund, established in section 2WWW; (ii) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (iii) funds from public or private sources, including gifts, grants, donations, rebates and settlements received by the commonwealth that are specifically designated to be credited to the fund; and (iv) interest earned on any money in the fund, for an agricultural workforce development grant program. The program shall award grants to public institutions of higher education, vocational technical schools or community-based organizations that have existing programs for providing workforce development training to first-time farmers or the capacity to create such programs. Priority consideration shall be given to programs that serve a high

percentage of historically underserved or low-income students or people with disabilities, programs operated by nonprofits that house homeless veterans and include food production or distribution training and programs that include hands-on training and training in agricultural practices that mitigate climate change and protect the environment. Not less than \$3,000,000 annually from this fund shall go to programs that provide training in agriculture as defined by section 1A of chapter 128; provided, that not more than \$500,000 shall be granted annually to programs providing training in the growing and harvesting of forest products upon forest land.

(c) Annually, not later than May 30, the secretary of labor and workforce development shall submit a report detailing the expenditures of the fund to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on economic development and emerging technologies and the joint committee on agriculture and fisheries.

Section 2NNNNNN. (a) For the purposes of this section, the following terms shall, unless the context clearly requires otherwise, have the following meanings:

“Vacant lot”, a property that is not being actively used or occupied and that has not been actively used or occupied within at least the preceding 1 year, including, but not limited to, abandoned, empty and foreclosed properties. This definition shall not apply to a property which is undergoing renovations or repairs due to fire or other casualty.

“Urban agriculture”, an activity that meets the definition of agriculture in section 1A of chapter 128 and that takes place in urban and suburban areas.

(b) There shall be established and set up on the books of the commonwealth a separate fund to be known as the Vacant Lots to Urban Agriculture Fund. The fund shall be administered

by the department of agricultural resources. The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources such as gifts, grants and donations; and (iii) interest earned on monies in the fund. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund; provided, however, that such contributions shall not be further restricted by the donor or used by the commonwealth for any other purpose.

(c) The purpose of the fund established in subsection (b) shall be to support the conversion of vacant lots to farms, community gardens and other agricultural enterprises. Priority consideration shall be given to projects located in environmental justice populations, as defined in section 62 of chapter 30, that support increased economic development, food security, climate and heat resilience, agricultural education, job training, donation of food to food insecure residents, public engagement, utilization of controlled-climate growing infrastructure and agricultural systems or other climate-smart agricultural practices. Said grants shall be awarded for: (i) municipalities to collaboratively develop urban farming and gardening plans with residents, local food system businesses, non-profit organizations or other organizations and a regional planning agency; (ii) municipalities, urban agriculture organizations or businesses to assist in the purchasing of private parcels; (iii) municipalities, urban farming businesses or nonprofit organizations to purchase or lease land, renovate land, build infrastructure or assist in farm, community garden and other agricultural enterprise startup costs; (iv) the purpose of establishing pilot programs in environmental justice populations to transition vacant lots into farms, community gardens and other agricultural enterprises; (v) the purpose of moving a city-

205 held tax land lien that was foreclosed to agricultural use; or (vi) the purpose of protecting a
206 parcel with a conservation easement.

207 (d) The department of agricultural resources shall provide outreach and application
208 materials for the grant program in multiple languages.

209 (e) The commissioner of agricultural resources shall promulgate rules and regulations for
210 the administration and implementation of this section.

211 (f) Annually, the commissioner of agricultural resources shall file a report with the house
212 and senate committees on ways and means, the joint committee on agriculture and fisheries and
213 the clerks of the house of representatives and the senate including, but not limited to: (i) a list of
214 grant applicants and the municipalities in which they are located; (ii) a list of grant recipients and
215 the municipalities in which they are located; (iii) the amount of funds requested by applicants;
216 (iv) the associated awarded grant amounts; and (v) the number of environmental justice
217 populations served by the awards made by the fund.

218 SECTION 13. Section 20 of chapter 30B of the General Laws, as appearing in the 2024
219 Official Edition, is hereby amended by striking out, in line 19, the figure “10” and inserting in
220 place thereof the following figure:- 20.

221 SECTION 14. Said section 20 of said chapter 30B, as so appearing, is hereby further
222 amended by adding the following 2 subsections:-

223 (c) Annually, on or before October 31, the office of the inspector general shall file a
224 report with the clerks of the house of representatives and the senate including the names of each
225 governmental body that has, in accordance with this section, established a preference for the

procurement of such products of agriculture grown or produced using products grown in the commonwealth. The report shall also be posted on the website of the office of the inspector general.

(d) Notwithstanding any general or special law to the contrary, not less than every 5 years, the office of the inspector general shall conduct a public information campaign to notify governmental bodies of their abilities pursuant to this section. As part of said campaign, the office of the inspector general shall develop web-based educational materials and hold not less than 3 public informational sessions; provided that at least 1 session shall be held virtually.

SECTION 15. Section 3 of chapter 40A of the General Laws, as so appearing, is hereby amended by inserting after the first paragraph the following paragraph:-

Nothing in this section shall be construed to prevent any of the zoning ordinance or by-law exemptions under this section from applying to land on which agritourism takes place; provided, that the primary use of this land and the structures thereon conform with the requirements of the first paragraph of this section. For the purposes of this section, “agritourism” shall be as defined in section 1B of chapter 128. In considering whether land is used for the primary purpose of commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture, the presence or lack of agritourism activities located thereon shall not be the sole basis for granting or refusing to grant this consideration.

SECTION 16. Section 2A of chapter 61A of the General Laws, as so appearing, is hereby amended by adding the following subsection:-

(e) (1) As used in this subsection, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Commissioner”, the commissioner of the department of agricultural resources.

“Department”, the department of agricultural resources.

“Farmland”, land primarily and directly used for agricultural purposes pursuant to section 1 or land primarily and directly used for horticultural purposes pursuant to section 2.

“Farm viability”, the financial and environmental ability of a farm to remain in operation and produce crops over the short and long term.

(2) Notwithstanding any general or special law to the contrary, the department, in consultation with the department of energy resources, once every 10 years or at other such frequency as determined by the commissioner, whichever is more frequent, shall review and consider whether any amendments to statutory, regulatory and deed-based restrictions on the amount of renewable energy allowed to be generated on farmland, including but not limited to, land assessed or taxed under this chapter and land in the agricultural preservation restriction program established pursuant to section 23 of chapter 20, would help preserve or improve farm viability. The department shall consider whether alternative measures such as updated or modernized farm management or business practices could achieve the same or similar improvements in farm viability, as well as the commonwealth’s current ability to support farmers in updating said practices, in their consideration of whether and which amendments to recommend. The department shall additionally factor into its review and considerations the impact on food production in the commonwealth, the promotion of healthy soils and biodiversity, environmental sustainability and the commonwealth’s renewable energy goals pursuant to the roadmap plans required under section 5 of chapter 21N. If the department concludes that amendments to the restrictions on the amount of renewable energy allowed to be

generated on farmland are warranted, the commissioner shall include a list of the department's specific recommended amendments in the department's report.

(3) The department shall report the findings of its review to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the joint committee on environment and natural resources.

SECTION 17. Said chapter 61A is hereby further amended by inserting after section 14 the following section:-

Section 14A. The department of agriculture shall have a first refusal option to meet a bona fide offer to purchase land proposed for sale subject to section 14 or an option to purchase such land at full and fair market value in the case of conversion, which option shall be subordinate to that of a town or city pursuant to section 14. Except as provided herein, the department shall have all applicable rights and obligations of cities and towns under section 14, including but not limited to the right of entry upon the land, provision of non-exercise notices and recording of notices of exercise at the appropriate registry of deeds. The department or its assignee and the town or city may cooperate for satisfaction of appraisal requirements or other obligations required by section 14 or this section.

Any notice of intent to sell or convert required by section 14 and all required accompanying materials shall be provided to the commissioner of the department of agriculture in the same manner as they are conveyed by the landowner to other parties. If the notice of intent to sell or convert provided to the commissioner does not contain all the required material, then

the department, within 30 days of receipt, shall notify the landowner and town or city in writing that the notice is insufficient and does not comply.

A holder of a mortgage shall send written notice of a mortgage foreclosure sale to the commissioner in the same manner as to other parties as required by section 14.

Any city or town shall provide to the commissioner any notice of public hearing, notice of exercise or non-exercise, and notice of assignment in the same manner, and containing the same materials, as to the landowner pursuant to section 14.

The department may assign its option to the department of conservation and recreation, provided that a notice of assignment shall be recorded pursuant to section 14.

The department or its assignee shall exercise its option only after: (i) consultation with the executive office of housing and livable communities and the executive office of economic development; and (ii) a public hearing. Said hearing shall be held: (1) pursuant to sections 18 to 25, inclusive, of chapter 30A; (2) within the town or city where the land is located or 1 such town or city if the land crosses a municipal boundary; and (3) prior to submission of a written notice of intent to exercise an option under this section. The department or assignee, at said hearing, shall disclose the reasons for exercise of the option pursuant to this section and identify any assignment by the department. The department or its assignee may comply with this requirement by participating in a scheduled public meeting of a town or city board or commission.

The department or its assignee may exercise an option under this section by providing written notice of its intent to the town or city and landowner prior to the end of the 120-day period concurrently available to the town or city for exercise of its option pursuant to section 14.

An option so exercised shall be effective at such time as the town or city records a notice of non-exercise with the registry of deeds or that the town's or city's option otherwise expires.

The department shall record its notice of assignment or notice of exercise within 30 days of the earliest of: (i) receipt by the commissioner of a notice of non-exercise from the town or city; (ii) expiration of a town or city option by failure to record a notice of exercise or notice of assignment; or (iii) receipt by the commissioner of notice from the landowner of expiration for any other reason.

Land acquired by the department of agricultural resources or the department of conservation and recreation pursuant to this section shall be permanently dedicated for public purposes specified in Article XCVII of the Amendments to the Constitution of the Commonwealth.

SECTION 18. Said chapter 61A is hereby further amended by adding the following section:-

Section 25. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Agricultural land”, land deemed to be in agricultural use pursuant to section 1.

“Horticultural land”, land considered to be in horticultural use pursuant to section 2.

(b) The department of revenue, in consultation with the department of agricultural resources, shall establish and maintain a central registry of all agricultural and horticultural land in the commonwealth. The department of revenue shall update the registry on a biennial basis or at other such frequency as determined by the commissioner of revenue, whichever is more

frequent. The commissioner of revenue shall facilitate information sharing among federal, state and local entities. Said registry shall include, but not be limited to, the following:

(i) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land;

(ii) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land taxed pursuant to this chapter;

(iii) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land that were disqualified from taxation pursuant to this chapter during the preceding tax year;

(iv) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land that are taxed pursuant to this chapter that were not taxed pursuant to this chapter in the preceding tax year; and

(v) the percentage of all cropland in the commonwealth, as reported in the most recent United States Department of Agriculture Census of Agriculture, that is taxed pursuant to this chapter.

(c) The department of revenue, in consultation with the department of agricultural resources, shall integrate the data from the central registry into a publicly accessible, interactive map with data shown at both the individual parcel and municipal level. The map shall be created in a format that allows for comparison and overlays with existing maps of soil conditions and types.

(d) The department of revenue shall make its data collection methodologies, findings and all of the data within the central registry and map accessible to the department of agricultural resources. The department shall make the central registry and the map publicly available, downloadable and searchable on its website.

SECTION 19. Chapter 75 of the General Laws is hereby amended by striking out section 14D, as appearing in the 2024 Official Edition, and inserting in place thereof the following section:-

Section 14D. There shall be within the University of Massachusetts a University of Massachusetts Extension Board of Public Overseers for the purpose of advising and assisting the chancellor of the University of Massachusetts at Amherst in the mission, budget, operation and management of University of Massachusetts Extension programs. Nothing in this section shall directly affect the employment status of personnel.

The board shall consist of 1 member of the senate, who shall be appointed by the senate president and who shall be a non-voting member; 1 member who shall be appointed by the minority leader of the senate and who shall be a non-voting member; 1 member of the house of representatives, who shall be appointed by the speaker of the house and who shall be a non-voting member; 1 member who shall be appointed by the minority leader of the house of representatives and who shall be a non-voting member; the president of the university or a designee; the chancellor of the University of Massachusetts at Amherst or a designee; the commissioner of food and agriculture or a designee; and the following persons to be appointed by the governor: 3 members of the Massachusetts Farm Bureau Federation, Inc. chosen from a list of 12 members submitted by said federation; 1 member of the Massachusetts 4-H

376 Foundation, Inc. chosen from a list of 3 members submitted by said organization; 1 member of
377 the Massachusetts Forestry Association chosen from a list of 3 members submitted by said
378 association; 1 member of the Massachusetts Audubon Society chosen from a list of 3 members
379 submitted by said society; 2 members of the Massachusetts Arborists Association chosen from a
380 list of 5 members submitted by said association; 1 member of a Buy Local organization chosen
381 from a list of 3 members submitted by said organization; 1 member of the Massachusetts Food
382 System Collaborative chosen from a list of 3 members submitted by said collaborative; 1
383 member from an organization engaged in urban farming education or practices; and 2 members
384 of organizations that support historically marginalized or new entry farmers and food producers.
385 The chancellor of the University of Massachusetts at Amherst shall appoint the chairperson from
386 among the membership of the board. Members of the board shall serve without compensation but
387 shall be reimbursed, subject to appropriation, out of any funds available for the purpose, for
388 necessary expenses incurred in the performance of their official duties. Non-voting members
389 shall serve on the board in an advisory capacity and shall not be reimbursed for necessary
390 expenses.

391 The appointed members of the board shall serve for terms of 5 years, except for persons
392 appointed to fill vacancies, who shall serve for the unexpired term. The board shall hold an
393 annual meeting in January and at least 3 other times during the year. The University of
394 Massachusetts Extension director shall attend all meetings of the board and shall serve as
395 secretary but shall have no vote in its deliberation. A simple majority of appointed voting
396 members of the board shall constitute a quorum. The board may, by vote of its members then in
397 office, adopt a policy for the conduct of business, including constitution of board membership.
398 Policies may be amended or repealed by a two-thirds vote of its members.

399 The director shall prepare an annual budget for board consideration. Such a budget shall
400 be adopted by the board and approved by the chancellor of the University of Massachusetts at
401 Amherst. The director shall annually render a complete and detailed report of the activities,
402 outcomes, revenue and expenditures to the board.

403 The university on behalf of the board may receive, manage and disburse grants and
404 donations from governmental agencies, other colleges and universities, corporations,
405 foundations, associations and individuals for the purpose of funding the University of
406 Massachusetts Extension and agricultural research programs. Further, the university on behalf of
407 the board may establish and administer trust funds to support such programs.

408 SECTION 20. Chapter 128 of the General Laws is hereby amended by inserting after
409 section 1A the following section:-

410 Section 1B. (a) "Agritourism" shall mean an agriculturally related educational,
411 entertainment, historical, cultural, commercial or recreational activity that allows or invites
412 members of the general public to observe, participate in, experience and enjoy that activity, and
413 serves to encourage the purchase of agricultural products that are produced on the land where the
414 activity takes place, or on other land within the commonwealth that is primarily used for
415 commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture and that
416 is owned by the same person as the land where the activity takes place; provided, that the activity
417 is conducted on land primarily used for commercial agriculture, aquaculture, silviculture,
418 horticulture, floriculture or viticulture as provided in section 3 of chapter 40A.

(b) The department shall establish regulations that include minimum land and revenue thresholds for agritourism activities. These regulations shall ensure that agritourism activities shall not unreasonably detract or derogate from agricultural production.

SECTION 21. Section 7A of said chapter 128, as appearing in the 2024 Official Edition, is hereby amended by inserting after the definition of “Healthy soils practices” the following definition:-

“Regenerative agriculture”, agriculture that: (i) improves the health of soils, including, but not limited to, the consideration of depth of topsoil horizons, water infiltration rate, organic carbon content, bulk density, biological activity, biological diversity and bare ground; (ii) is achieved through practices such as conservation tillage or no-till, cover-cropping, planned grazing, integrated crop-livestock systems, synthetic chemicals reduction and other methodologies; and (iii) is conducted in consultation with the commission for conservation of soil, water and related resources established in section 19 of chapter 21.

SECTION 22. Notwithstanding any general or special law to the contrary, the executive office of health and human services, in consultation with the division of insurance and the department of agricultural resources, shall conduct a comprehensive study to ascertain the state safety net and other benefit programs available to farmers and farm workers, including migrant farm workers as defined in section 2B of chapter 151 of the General Laws, identify the challenges and obstacles for farmers and farm workers in applying for, qualifying for and maintaining coverage under existing safety net programs and make recommendations for how the state can amend current programs or create new programs to better support farmers and farm workers. The secretary of health and human services shall facilitate information sharing and

441 policy synchronization among federal, state and local entities. Recommendations shall include,
442 but not be limited to, strategies and solutions for: (i) increasing access to coverage under
443 MassHealth for farmers and farm workers; (ii) increasing access to premium assistance payments
444 or point-of-service cost-sharing subsidies for farmers and farm workers through the
445 commonwealth health insurance connector authority; (iii) mitigating the MassHealth cliff effect
446 for farmers; and (iv) providing pension or state retirement coverage to farmers and farm workers,
447 including, but not limited to, through a state matching program for farmers' and farm workers'
448 retirement contributions. Said recommendations shall consider how to meet the differing needs
449 of farmer populations, including, but not limited to, urban farmers, suburban farmers, rural
450 farmers, farmers from historically underserved communities and farm workers.

451 Not later than 12 months after the effective date of this act, the executive office of health
452 and human services shall submit a report of its findings and recommendations, including any
453 budgetary or statutory needs, to the clerks of the house of representatives and the senate, the
454 house and senate committees on ways and means, the joint committee on health care financing
455 and the joint committee on agriculture and fisheries.

456 SECTION 23. Not later than 1 year following the effective date of this act, the
457 Massachusetts emergency management agency shall complete the first plan required under
458 section 18BB of chapter 6A of the General Laws.

459 SECTION 24. Not later than 120 days following the effective date of this act, the
460 department of agricultural resources shall promulgate regulations to implement section 34 of
461 chapter 20 of the General Laws.

462 SECTION 25. Not later than December 31, 2026, the department of environmental
463 protection shall establish such regulations, principles, policies and guidelines as are necessary to
464 implement section 21 of chapter 21G of the General Laws.

465 SECTION 26. Not later than 6 months following the effective date of this act, the
466 department of agricultural resources shall complete the first report required by subsection (e) of
467 section 2A of chapter 61A of the General Laws.

468 SECTION 27. Not later than 1 year following the effective date of this act, the
469 department of revenue shall establish and host on its website the registry and map required
470 pursuant to section 25 of chapter 61A of the General Laws.